

Summary Procedure Act, 1972

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Amending Acts

1. Some Nepal Acts (Amendment) Act, 2043 2043.7.24
2. Some Nepal Acts Relating to Court Proceedings (Amendment) Act, 2047 2047.4.10
3. Act to Amend Some Nepal Acts, 2048 2049.1.8

Certification and Publication Dates

4. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 Repealed by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. 2066.10.07
5. Act to Amend Some Nepal Acts, 2072 2072.11.13
6. Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 This Act came into force from Bhadra 1, 2075. 2074.6.30
7. Act to Amend Some Nepal Acts Relating to the Civil Code, 2075 2076.01.02

Act No. 17 of the Year 2028

An Act Made to Provide for Summary Procedure for Minor Cases

Preamble: Whereas it is desirable to provide for a summary procedure for minor cases so that they may be decided quickly,

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Summary Procedure Act, 2028".

(2) This Act shall come into force in such area and from such date as the Government of Nepal may, by notification in the Nepal Gazette, specify. As per the notification published in the Nepal Gazette dated 2029.10.1, this Act is specified to be in force throughout Nepal from 2030.1.1. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074. (a) "Complaint" means a plaint filed in a court, any other type of complaint, accusation or claim or counterclaim, and such term also includes, in the case of a criminal case, an indictment or a report relating thereto.

(b) "Case" means a case mentioned in Section 3 which is to be proceeded with and decided in accordance with this Act. Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074. (c) "Court" means the Supreme Court, a High Court or a District Court, and such term also includes any other

court, judicial body or official authorized by law to proceed with and decide particular types of cases. 3.

Cases to be Heard Under this Act: Amended by the Some Nepal Acts (Amendment) Act, 2043.(1) In conducting the original and appellate proceedings of any of the following cases filed after the commencement of this Act, the procedure under this Act shall be followed:- (a) A case specified in Schedule 1, or (b) A civil case involving the value of or the amount in dispute up to one thousand rupees, excluding those mentioned in Schedule 2, or a criminal case punishable with a fine of up to one thousand rupees or imprisonment of up to six months or both. (2) Notwithstanding anything written in sub-section (1), if any specific procedure has been provided by any Act in relation to any case, nothing in this Act shall be deemed to affect that procedure. (3) If questions relating to fraud, forgery or coercion arise from the statement or written reply of the defendant in any case, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075.the procedure under Section 172 of the Civil Procedure Code, 2074 or Section 104 of the Criminal Procedure Code, 2074 shall be completed, and that question shall also be decided in the same case. 4. Complaint: Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074.If any person gives a complaint stating evidence without filing a plaint, the court shall, taking a statement if necessary, proceed with the case based on that complaint alone. 5. Inquiry: (1) After a complaint is filed in any case, the court shall make an inquiry into the following matters in relation thereto:- (a) Whether the claim of the plaintiff or the accusation the plaintiff seeks to make against the defendant is based on law or not; (b) Whether the evidence presented or sought to be presented by the plaintiff is relevant to the case and whether such evidence is sufficient to prove the matters stated in the complaint. (2) If, upon making an inquiry under sub-section (1), the court finds that the plaintiff's complaint itself is not maintainable or that the matters stated in the complaint cannot be proved due to lack of credible or sufficient evidence, the court may dismiss the complaint, stating the reasons therefor. (3) Except where the complaint is liable to be dismissed under sub-section (2), the court shall:- (a) If the defendant is present in court, immediately take the defendant's statement and proceed with the case.

Provided that, if the defendant refuses to make a statement immediately and desires to submit a written reply, the defendant shall be granted a period of seven days.

(b) If the defendant is not present in court, issue a summons or notice in the defendant's name within three days.

(4) In a situation where the court itself has to initiate proceedings under any law, if it appears from the evidence immediately available in the case that proceedings should be instituted against any person, the court shall prepare a memo stating the following matters and proceed in accordance with clauses (a) and (b) of sub-section (3):-

(a) Full name and address of the defendant,

(b) Grounds for instituting the case, and

(c) Evidence relating thereto. 6. Copy of Complaint and Written Evidence to be Given to the Defendant: (1) In a case investigated by the police, if the defendant is in police custody, as soon as the complaint is registered, the relevant police office shall give a copy each of the complaint and the written evidence relating thereto to the defendant.

(2) In a case proceeding under sub-section (4) of Section 5, the court shall, before making the defendant give a statement, give a copy each of the memo mentioned in that sub-section and the written evidence relating thereto to the defendant, or send them along with the summons or notice.

(3) Except in the situations mentioned in sub-sections (1) and (2), each plaintiff shall submit copies of the

complaint and the written evidence relating thereto to the court along with the complaint, at the rate of one copy for each defendant, and the court shall send such copies to the defendant along with the summons or notice. Provided that, no matter how many defendants there are in one household, it shall be sufficient to submit or send only one copy each of the complaint and the written evidence relating thereto.

(4) If proceedings in a case have been conducted without giving or sending the copies required to be given or sent to the defendant under this section, such proceedings shall be void.

(5) In case a summons or notice is pasted under sub-section (2) of Section 7, the copies sent along with such summons or notice shall be returned by the employee going to serve such summons or notice to the court, and the defendant may obtain such copies from the court at any time. 7. Summons or Notice: (1) When issuing a summons or notice under this Act, the court shall issue it in the format prescribed in Schedule 3.

Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074.(2) A summons or notice issued under sub-section (1) shall be served by completing the formality according to the prevailing law. Provided that, if the defendant or the defendant's house or residence cannot be located due to the plaintiff having written a wrong address or the court having mentioned a wrong address, pasting under this sub-section shall not be deemed to be service of the summons or notice in the prescribed manner. (3) The employee going to serve a summons or notice under this section shall complete the service within two days, excluding travel time, and if the employee is found to have delayed serving the summons or notice without reasonable cause, the court may impose a fine of up to twenty-five rupees on the employee. 8. Adjournment of Date: (1) In any case proceeding under this Act, an adjournment of a date already fixed shall not be granted. Provided that- (a) If the court believes that a date has been missed due to circumstances beyond the control of a party, the date may be adjourned for a total of up to fifteen days, either at once or twice.

Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075.(b) The provisions of Section 225 and Section 226 of the Civil Procedure Code, 2074 and Section 190 of the Criminal Procedure Code, 2074 shall apply accordingly. (2) When issuing a summons or notice in the name of the defendant, a period of seven days, excluding travel time, shall be given. 9. Special Provision for Others to Present Evidence on Behalf of an Absent Defendant: (1) In any civil case, if, within seven days from the date of expiry of the period of the notice issued under Section 7, any person having an interest in the same household as the defendant shows a credible reason why the defendant was unable to contest within the notice period and presents any evidence that rebuts the plaintiff's claim, the court shall consider such evidence as well and decide the case. (2) In any criminal case, if, within seven days from the date of expiry of the period of the summons issued under Section 7, any person shows a credible reason why the defendant was unable to appear in court or submit a reply within the summons period and presents any evidence that rebuts the complaint, the court shall consider such evidence as well and decide the case. 10.

Time Limit for Deciding a Case: (1) A case shall be decided within ninety days from the date on which the written reply is filed or the defendant's statement is taken, and if no written reply is filed or no defendant's statement is taken, from the date of expiry of the period for doing so. (2) Notwithstanding anything written in sub-section (1) regarding the time for deciding a case, if the case is ready for decision before that time, it shall be decided within three days from that date. Provided that the case shall not be decided before the expiry of the period for which adjournment may be granted under Section 8 and the period during which evidence may be presented on behalf of an absent defendant under Section 9. 11. When Parties May Not Appear after Evidence is Completed: (1) After the court has heard the evidence of both the plaintiff and the defendant, any party may, with the permission of the court, choose not to appear on the date fixed. (2) After the plaintiff has presented the plaintiff's evidence, if only the plaintiff or the defendant as well fails to appear

on the date fixed, the case shall not be dismissed and a decision shall be made based on the evidence heard so far. Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074.11a. Time Limit for Filing an Appeal: An appeal may be filed against a judgment rendered by a court within thirty days from the date of knowledge thereof, subject to the prevailing law. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. Added by the Some Nepal Acts (Amendment) Act, 2043.11b. Time Limit for Deciding an Appeal: (1) When deciding an appeal, it shall be decided within ninety days from the date on which the record of the case from the lower court is filed. (2) Notwithstanding anything written in sub-section (1) regarding the time for deciding an appeal, if the appeal is ready for decision before that time, it shall be decided within three days from that date. 12.

Circumstances Where Procedure Under this Act Need Not or Shall Not Be Followed: (1) If, while proceeding with a case, it appears that the case does not fall under this Act, the court shall prepare a memo stating the reasons and shall follow the ordinary procedure according to other prevailing Nepal law for the remaining proceedings of that case. (2) If, in any case, some matters fall under this Act and some matters require following the procedure according to other prevailing Nepal law, the ordinary procedure according to other prevailing Nepal law shall be followed in the proceedings of the entire case. 13. Power to Make Rules: For the purpose of implementing the objectives of this Act, the Government of Nepal may, after consulting the Supreme Court, make rules. 14. Saving and Repeal: (1) In a case where the procedure under this Act is required to be followed, even if the ordinary procedure according to other prevailing Nepal law is followed instead of the procedure under this Act, the proceedings already conducted shall not be void solely for that reason. (2) In cases to be heard under this Act, matters relating to procedure other than those written in this Act and the rules made under this Act shall be according to the prevailing Nepal law. (3) The following Nepal Acts are hereby repealed:- (a) The phrase "Proceedings relating to offences under this Act shall be conducted by summary inquiry" in sub-section (2) of Section 10 of the Statistics Act, 2015. (b) The word "summary" in Section 12 of the Land Acquisition Act, 2018 and Section 26 thereof. (c) The words "summary" in Section 9, sub-section (2) of Section 15 and sub-section (1) of Section 56 of the Forest Act, 2018, and Section 18 thereof. (d) Sections 49, 50, 51, 53 and 54 of the Village Panchayat Act, 2018. (e) The phrase "summary as in a criminal case" in Section 3 of the Begging (Prohibition) Act, 2018. (f) The phrase "by summary inquiry and other necessary proceedings" in the proviso to sub-section (1) of Section 146 of the Companies Act, 2021. (g) The words from "and in relation thereto" to "shall" in Section 9 of the Highway Construction Act, 2021. (h) The words from "shall be and in such case" to "all powers" in sub-section (2) of Section 40 of the Tourism Industry Act, 2021. (i) The word "summary" in sub-section (2) of Section 15 of the Corporation Act, 2021. (j) The words "summary inquiry into" in sub-section (1) of Section 5 of the National Transport Management Act, 2026. Schedule 1 (Relating to clause (a) of sub-section (1) of Section 3) 1.

A case under the Nepal Agency Related Act, 2014, 2. A case under the Radio Act, 2014, 3. A case under the Patent, Design and Trademark Act, 2022, 4. A case under the Institution Registration Act, 2034, 5. A case under Section 30 of the Standard Weights and Measures Act, 2025, 6. A case under Section 7 of the Lottery Act, 2025, 7. A case under Section 17 of the Education Act, 2028, 8. A case under Section 46 of the Tourism Act, 2035, 9. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. A case under the Labour Act, 2048, 10. A case within the jurisdiction of the judicial committee of a rural municipality or municipality according to the prevailing law, 11. A case under the Excise Act, 2058, 12. A case under the Copyright Act, 2059, 13. A case under the Companies Act, 2063, 14. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. Under the Civil Code, 2074,- (a) A case relating to the clearance of title of immovable property under Chapter 13 of Part 4, (b) A case relating to wages or remuneration under Chapter 14 of Part 5, (c) A case relating to the payment of a lump sum amount or expenses without taking a

share upon divorce according to Section 100, (d) A case relating to providing food and clothing according to status and income, and arranging education and health treatment according to financial capacity under Section 211, (e) A case relating to the eviction of a person residing in a house contrary to Section 401. 15. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. A case under Section 201 of the Criminal Code Act, 2074 relating to detention without providing minimum humane facilities, 16. A case specified in the prevailing law to follow the procedure under the Summary Procedure Act, 2028. Schedule 2 (Relating to clause (b) of sub-section (1) of Section 3) 1. Any other case relating to immovable property, except those specified in Schedule 1. 2. A case relating to easement. 3. A case relating to share or inheritance. 4. A case relating to claiming to establish a relationship. 5. A case relating to the offence of rape. 6. A case relating to any type of theft. 7. A case relating to fraud or forgery, except where proceedings are conducted under sub-section (3) of Section 3. 8. Repealed by the Act to Amend Some Nepal Acts, 2078. Schedule 3 (Relating to sub-section (1) of Section 7) Office.